

26STCV07288 26STCV07288

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Pending before the Court is the motion of Defendant William Warren Properties, Inc. dba Storquest Self Storage ("Storquest") to strike the prayer for an award of punitive and exemplary damages against Storquest in the First Amended Complaint ("the FAC") of Plaintiff Stacey Tucker ("Tucker"). The Court is granting Storequest's motion.

The Court previously granted Storequest's motion to strike the prayer for an award of punitive damages against Storquest in Tucker's initial Complaint. In reaching that conclusion, the Court observed that punitive damages could be awarded on Tucker's claim for conversion in the initial Complaint but that the allegations in the Complaint were insufficient to establish facts necessary under Civil Code section 3294 for the imposition of such an award. First, the allegations failed to show that Storquest acted with malice, oppression, or fraud in converting Tucker's property. Second, the allegations failed to show that any officer, director, or managing agent of Storequest, a corporate employer, had advance knowledge of the unfitness of the employee(s) who converted Tucker's property and employed him/her/them with a conscious disregard for the rights and safety of others or authorized or ratified the employee(s)' wrongful conduct. The Court agrees with Storequest that the allegations in the FAC fail to cure these two pleading defects the Court identified in its ruling granting Storequest's motion to strike the prayer for punitive damages in the initial Complaint. None of the allegations added to the mix in the FAC does this trick. Tucker's arguments to the contrary in her opposition to Storquest's motion are unavailing.

It is true that, in the FAC, Tucker has added new claims that were not in the initial Complaint -- claims that, like conversion, could support an award of punitive damages. One of those new claims is for fraudulent concealment. Tucker alleges that Storquest acted fraudulently in connection with the transfer of Tucker's property. The problem is that Tucker added the fraud claim, as well as all the other new claims in the FAC, which are for trespass to chattels, aiding and abetting, and violations of Penal Code section 496, subdivision (c), without obtaining leave from the Court to add them. Tucker also added two new Defendants, Luxury Buyers, Inc. and Nick Migalgo, without leave of the Court. In granting Storequest's prior to motion to strike with leave to amend, the Court did not give Tucker leave to add new claims and parties. It simply gave Tucker leave to amend to cure the pleading defects as to the prayer for punitive damages on the conversion claim in the initial Complaint. The Court is setting for September 30, 2026 at 8:30, which is the date and time for the case management conference in this case, an order to show cause as to why the Court should not on its own motion strike the new claims and two new Defendants in the FAC on the ground that Tucker made these additions without leave from the Court. At the September 30, 2026 hearing, the Court also will address whether Tucker should be given leave to amend one more time to cure the pleading defects as to the prayer for punitive damages against Storequest in the FAC. Thus, Storequest's motion to strike is continued to that date for that limited purpose.